

Here, the Court has previously imposed sanctions of \$9,600.00, which have not been paid. Defendant requests an additional \$13,450.00 in attorney fees for bringing this motion. This is based on rates of \$690 per hour, and \$545 per hour. No breakdown of hours spent has been provided, so the Court cannot determine whether the time spent was reasonable. Using the lower hourly rate, this would amount to over 24 hours on the preparation of this motion.

The Court finds the hourly rate and hours requested unreasonable. A reasonable hourly rate is determined by the prevailing rate charged to attorneys of similar skill and experience in the relevant community. *See PLCM Group, Inc. v. Drexler* (2000) 22 Cal.4th 1084, 1095. A party seeking to recover hourly rates for out-of-town counsel that are higher than the local rates must show (1) a good faith effort to find local counsel, and (2) demonstrate that hiring local counsel was impracticable. *Nichols v. City of Taft* (2007) 155 Cal.App.4th 1233, 1243. There is no evidence supporting an award of hourly rates higher than local rates. Based on the Court's knowledge and experience, it finds \$400 per hour to be reasonable in this matter. The Court will also reduce the hours requested to 8, since no itemized breakdown was provided. Sanctions will be imposed in the amount of \$3,200.

The Motion for Terminating Sanctions is **GRANTED** in part. The requests for terminating or evidentiary sanctions is made moot by the granting of Defendant's Motion for Summary Judgment. The request for an order of sanctions jointly and severally against Plaintiff and Counsel is granted, in the amount of \$3,200. Defendant's proposed order will be modified.

BLEAKLEY VS. AIRBNB, INC, ET AL.

CASE NUMBER: 26CV-0210657

Tentative Ruling on Motion for Order Nunc Pro Tunc to Set Filing Date: Plaintiff Michelle Bleakly moves for an Order *nunc pro tunc* setting (or amending) the filing date for the Complaint in this action as May 11, 2026 to correct a clerical error. The Court is inclined to grant the Motion on the merits, if the representations Counsel makes in the Motion are adequately supported by evidence. The Declaration of Sako Demirjian, filed concurrently with the Motion, does not establish any of the facts alleged in the Motion. Moreover, Exhibits A and B are missing from the filing. The Court will continue hearing on this Motion to permit Plaintiff to file a supplemental declaration that adequately supports the Motion. Today's hearing is continued to **Monday, September 28, 2026 at 8:30 a.m. in Department 64.** Any supplemental declaration must be filed no later than September 22, 2026.

LOZANO VS. CALIFORNIA TOWING & TRANSPORT, ET AL.

CASE NUMBER: 25CV-0208662

Tentative Ruling on Demurrer: Defendant City of Redding and the Redding Police Department demur to each cause of action in the Second Amended Complaint on the grounds that the claims are barred by failure to comply with the Government Claims Act, statutory immunity, for failure to state a claim, and for being vague and ambiguous. The demurrer is properly noticed and unopposed.

Meet and Confer: CCP § 430.41 requires the demurring party to "meet and confer in person or by telephone with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer." The Declaration of Tracy Werner establishes compliance with the meet and

confer requirements.

Request for Judicial Notice: Defendant requests the Court take judicial notice of a Redding Police Department Citation, Phone Message, and Call for Service. The request is denied as these documents do not fall within any of the categories set forth in Evidence Code 452.

Merits: A demurrer should be sustained if the complaint fails to “state facts sufficient to constitute a valid cause of action.” CCP § 430.10(e). A demurrer can be used to challenge defects that appear on the face of the complaint or from matters that may be subject to judicial notice. *Blank v. Kirwan* (1985) 39 Cal. 3d 311, 318. The court “treat[s] the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law.” *Hood v. Hacienda La Puente Unified School District* (1998) 65 Cal. App. 4th 435, 438. No matter how unlikely, a plaintiff’s allegations must be accepted as true for the purpose of ruling on a demurrer. *Del. E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal. App. 3d 593, 604. A plaintiff must plead ultimate facts that acquaint the defendant with the nature, source and extent of plaintiff’s causes of action. *Doe v. City of Los Angeles* (2007) 42 Cal. 4th 542, 550.

The operative complaint is Plaintiff’s Second Amended Complaint, filed May 4, 2026. It alleges the following causes of action: 1) Conversion (against CTT), 2) Trespass to Chattels (against CTT), 3) Negligence (against all Defendants), 4) Civil Rights 42 USC 1983 (against City and County), 5) Bane Act Civil Code 52.1 (against CTT), 6) Unfair Business Practices, Bus. & Prof. Code 17200 (against CTT), and 7) Declaratory Relief (against all Defendants). Therefore, the only causes of action at issue on this Demurrer are 3, 4, and 7.

First as a threshold issue, Plaintiff’s claims are barred by his failure to comply with the Government Claims Act. Gov. Code § 945.4 provides that no suit for money or damages may be brought against a public entity on a cause of action for which a claim is required to be presented in accordance with Chapter 1 (commencing with Section 900) and Chapter 2 (commencing with Section 910) of Part 3 of this division until a written claim therefor has been presented to the public entity and has been acted upon by the board, or has been deemed to have been rejected by the board, in accordance with Chapters 1 and 2 of Part 3 of this division. Plaintiff’s Second Amended Complaint alleges only that he filed a Government Claim with County of Shasta. The SAC does not allege a Government Claim was filed with the City of Redding. The City argues no Government Claim was received prior to the filing of this action. Plaintiff has not disputed that argument or provided any evidence to the contrary.

Negligence. Government Code § 815 provides that a California public entity cannot be held liable for injury or damages except where authorized by statute. Common law torts such as negligence are not permitted. Plaintiff also lists CVC 22651.07, an apparent reference to the California Vehicle Code. This statutes does not authorize liability for damages against a public entity. Therefore the demurrer as to the third cause of action for negligence as to the City is **SUSTAINED** without leave to amend.

Civil Rights 42 USC § 1983. To state a cause of action under 42 USCS § 1983 against a city in California, a plaintiff must allege that a municipal policy, practice, or custom caused a municipal employee, acting under color of state law, to violate the plaintiff’s federally protected rights. *Irwin v. City of Hemet* (1994) 22 Cal. App. 4th 507. To establish local governmental liability under the seminal *Monell* framework, the plaintiff must sufficiently plead three primary elements: (1) the

deprivation of a constitutional right or a right secured by the laws of the United States; (2) that the city had an official policy, practice, or custom that amounted to deliberate indifference to that right; and (3) that the action taken pursuant to that policy, custom, or practice was the moving force behind and directly caused the constitutional violation and injury. *Casey N. v. County of Orange* (2022) 86 Cal. App. 5th 1158. “In order to state a cause of action under 42 United States Code sections 1983 or 1985(3), the pleader must show, in a specific and nonconclusory way, that the alleged acts deprived him of rights, privileges, or immunities secured by the federal Constitution and laws.” *Duffy v. City of Long Beach* (1988) 201 Cal.App.3d 1352, 1360.

Here, Plaintiff has made a bare recitation of “deprivation of property without due process and unreasonable seizures.” The SAC fails to state a claim pursuant to 42 USC § 1983. Plaintiff has not opposed the motion and there is no showing that there is a reasonable possibility the defect can be cured by amendment. Therefore, the demurrer to the fourth cause of action as to the City is **SUSTAINED** without leave to amend.

Declaratory Relief. “Declaratory relief generally operates prospectively to declare future rights, rather than to redress past wrongs. [Citations.] It serves to set controversies at rest before they lead to repudiation of obligations, invasion of rights or commission of wrongs. In short, the remedy is to be used in the interests of preventive justice, to declare rights rather than execute them. To qualify for declaratory relief, [a party] would have to demonstrate its action presented two essential elements: ‘(1) a proper subject of declaratory relief, and (2) an actual controversy involving justiciable questions relating to [the party's] rights or obligations’ ” *Jolley v. Chase Home Finance, LLC* (2013) 213 Cal.App.4th 872, 909.

Here, Plaintiff’s SAC seeks “a declaration that the sales were void and statutory rights were violated.” This bare recitation without the identification of any actual present controversy, or rights or obligations, is insufficient to put Defendant on notice of what Plaintiff is alleging. Plaintiff has not opposed the motion and there is no showing that there is a reasonable possibility the defect can be cured by amendment. Therefore, the demurrer to the fourth cause of action as to the City is **SUSTAINED** without leave to amend.

The City of Redding’s Demurrer to Plaintiff’s Second Amended Complaint is **SUSTAINED** without leave to amend. The proposed order will be executed.

LVNV FUNDING LLC VS. DYSON

CASE NUMBER: 25CVG-02396

Tentative Ruling on Motion to Set Aside Default: Defendant Megan Dyson moves to set aside default judgment pursuant to CCP 473(b) on the grounds of surprise and excusable neglect. The matter has been properly noticed and is unopposed.

Merits. CCP § 473(b) permits the Court to set aside a default or order entered against an aggrieved party due to mistake, surprise, inadvertence or excusable neglect. The burden is on the moving party to show that the neglect was *excusable*: i.e., that the default could not have been avoided through the exercise of ordinary care. *Jackson v. Bank of America* (1983) 141 Cal.App.3d 55, 58. “[T]he acts which brought about the default must have been the acts of a reasonably prudent person under the same circumstances.” *Id.* The moving party has the burden of proof to establish one of these conditions by a preponderance of the evidence. *Luz v. Lopes* (1960) 55 Cal.2d 54, 62. The moving party must submit affidavits or testimony demonstrating a reasonable cause for the default.